

HOUSE No. 3185

The Commonwealth of Massachusetts

PRESENTED BY:

Joseph D. McKenna

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to taxpayer conscience protection.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>1/7/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>9/4/2025</i>
<i>John R. Gaskey</i>	<i>2nd Plymouth</i>	<i>9/4/2025</i>

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By Representative McKenna of Sutton, a petition (accompanied by bill, House, No. 3185) of Joseph D. McKenna for legislation to allow taxpayers to have the option to indicate on their income tax return that they do not want any portion of their income tax liability to be utilized for abortion services. Revenue.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2887 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to taxpayer conscience protection.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 62 of the General Laws, as appearing in the 2016 Official Edition of the General
2 Laws of Massachusetts, is hereby amended by adding at the end thereof the following new
3 section:

4 "Section 65. (a) For the purposes of this section, "abortion services" shall include
5 performing, referring for abortion, or counseling for abortion.

6 (b) Taxpayers shall have the option to indicate on their income tax return that they do not
7 want any portion of their income tax liability to be utilized for abortion services. When a
8 taxpayer makes such election, the taxpayer's income tax liability may not be used to pay for
9 abortion services.

(c) The portion of the taxpayer's income tax liability that is not to be used to pay for abortion services, pursuant to this section, must be deposited into a special account, separate and apart from the General Fund, whose purpose shall be to develop and implement a public information program to inform the general public of the provisions of section 39-½ of Chapter 119, concerning voluntary abandonment of a newborn infant, also known as the Baby Safe Haven Law.

(d) The amount of the taxpayer's income tax liability to be set aside in the special account specified in paragraph (c) shall be determined by multiplying the taxpayer's income tax liability by the percentage of the General Fund dedicated to paying for abortion services in the previous year."